

EXCLUSIVE NAME, IMAGE, AND LIKENESS REPRESENTATION AGREEMENT

Compliant with the Mississippi Uniform Athlete Agents Act (Miss. Code Ann. § 73-42-1 et seq.), the Mississippi Intercollegiate Athlete Compensation Act (Miss. Code Ann. § 37-97-101 et seq.), and the federal Sports Agent Responsibility and Trust Act (15 U.S.C. § 7801 et seq.)

This Exclusive Name, Image, and Likeness Representation Agreement (this “Agreement”) is entered into as of the Effective Date set forth below, by and between:

Effective Date:

Athlete (“Athlete”):

Christopher Hyche, an individual athlete agent registered with the Mississippi Secretary of State (“Agent”), acting on behalf of:

Agency:

The Athlete and Agent are referred to collectively as the “Parties.”

1. Purpose and Scope of Representation

The Athlete appoints the Agent as the Athlete’s exclusive representative solely for the negotiation, solicitation, and procurement of Name, Image, and Likeness (“NIL”) opportunities during the Term. Representation is strictly limited to NIL-related marketing, promotional, endorsement, appearance, licensing, social media, and brand-partnership opportunities.

This Agreement constitutes an “agency contract” within the meaning of Miss. Code Ann. § 73-42-3 and a name, image, and likeness agreement within the meaning of Miss. Code Ann. § 37-97-103, and is intended to comply with the Mississippi Uniform Athlete Agents Act in full.

2. Agent Registration and Authority

The Agent represents and warrants that, as of the Effective Date, the Agent holds a current certificate of registration as an athlete agent issued by the Mississippi Secretary of State under Miss. Code Ann. § 73-42-7; is in compliance with the federal Sports Agent Responsibility and Trust Act; and will maintain such registration in good standing throughout the Term.

MS Registration No.:

Registration Expires:

The Athlete may verify the Agent’s registration with the Mississippi Secretary of State before signing. **Under Miss. Code Ann. § 73-42-7, an agency contract entered into by an unregistered athlete agent is void, and the Agent must return all consideration received.**

3. Express Limitation to Preserve Eligibility

To preserve the Athlete’s intercollegiate eligibility and comply with applicable institutional, conference, and NCAA rules, the Agent shall NOT: (1) negotiate or solicit any professional playing contract; (2) negotiate with any professional team regarding athletic services; (3) provide representation for draft preparation or professional employment; (4) enter into any agreement for the Athlete’s athletic performance services; or (5) accept compensation tied to any future professional playing contract. This Agreement shall not be construed as an agreement for professional sports representation. Any future professional representation requires a separate written agreement subject to the Athlete’s eligibility status at that time.

4. Exclusive NIL Representation

During the Term, the Agent shall be the Athlete's exclusive NIL marketing representative, and the Athlete shall not engage any other agent to negotiate NIL opportunities. The Athlete may retain legal counsel, tax advisors, and financial advisors, provided they do not negotiate NIL opportunities.

5. Pre-Existing NIL Agreements

NIL agreements the Athlete entered into before the Effective Date are listed on Schedule A and are excluded from this Agreement. The Agent shall not earn any commission on those agreements or on their renewals or extensions, unless the Agent substantially negotiates a renewal or extension during the Term.

6. Term

The Term begins on the Effective Date and continues for (select one):

☐ One (1) year

☐ Two (2) years

Other:

unless earlier terminated under this Agreement. **In no event shall the Term extend beyond the Athlete's period of intercollegiate athletic participation at the Athlete's current institution (Miss. Code Ann. § 37-97-107). This Agreement does not automatically renew; any renewal requires a new signed writing.**

7. Compensation

As consideration for services actually rendered, the Agent shall receive (select and complete):

☐ Percentage of gross NIL compensation negotiated by the Agent:

Commission rate (%):

☐ Flat fee per NIL deal negotiated by the Agent:

Flat fee (\$):

The total Commission shall not exceed twenty percent (20%) of the agency contract (Miss. Code Ann. § 73-42-3). The Agent shall NOT receive compensation tied to athletic performance, playing contracts, or professional drafts.

Agent remits NIL funds (less Commission) within ____ days:

8. Athlete Approval Required

The Athlete retains final approval over all NIL agreements. The Agent may not bind the Athlete without the Athlete's prior written consent.

9. Compliance with Laws, Institutional Policies, and Clearinghouse Reporting

The Agent shall comply with applicable state NIL laws, the Athlete's institutional and conference NIL policies, NCAA rules, and federal athlete-agent regulations. The Agent shall not procure opportunities in any category prohibited under Miss. Code Ann. § 37-97-105 (including gambling or sports wagering, tobacco or nicotine, alcohol, controlled substances, adult entertainment, or any category conflicting with institutional values), and shall not use the institution's marks without written permission. The Agent shall structure deals to satisfy any applicable clearinghouse review (including "NIL Go" administered by the College Sports Commission) and assist the Athlete in timely reporting qualifying deals. The Agent shall not earn a Commission on any amount by which a deal is reduced or on any portion that fails clearinghouse review.

10. Institutional Notification

The Athlete shall provide the Athlete's institution at least seven (7) days' written notice before entering into this Agreement (Miss. Code Ann. § 37-97-107). In addition, within seventy-two (72) hours after signing, or before the Athlete's next scheduled athletic event, whichever occurs first, both the Agent and the Athlete shall notify the athletic director (or designee) of the Athlete's institution (Miss. Code Ann. § 73-42-21; 15 U.S.C. § 7805).

11. No Inducements

The Agent shall not provide cash advances, gifts, transportation, housing, or benefits tied to enrollment or transfer, except as permitted under applicable NIL rules, and shall not give false or misleading information or anything of value to induce the Athlete to enter into this Agreement (15 U.S.C. § 7802; Miss. Code Ann. § 73-42-25).

12. Independent Contractor Status

The Agent acts as an independent contractor and not as an employee of the Athlete.

13. Fiduciary Duty and Conflicts of Interest

The Agent owes the Athlete a fiduciary duty of loyalty, care, and good faith. The Agent shall disclose in writing any relationship with any brand, NIL collective, agency, or professional team that may present a conflict, and shall obtain the Athlete's written consent before acting where such a conflict exists. The Agent shall not represent any party adverse to the Athlete in an NIL negotiation.

14. Termination

Either Party may terminate: on thirty (30) days' written notice; immediately upon the other Party's material breach; or immediately if required to maintain the Athlete's eligibility. On termination, the Agent is entitled to a Commission only on NIL deals the Agent substantially negotiated to conclusion during the Term, and not on renewals, extensions, or new deals arising after termination.

Post-termination Commission reduction schedule:

15. Indemnification

Each Party shall indemnify and hold harmless the other from third-party claims, losses, and reasonable expenses arising from the indemnifying Party's breach of this Agreement or violation of law. The Agent's indemnity expressly includes any breach of its registration, fiduciary, or compliance obligations.

16. No Guarantee of Compensation

The Agent makes no guarantee of NIL opportunities or any amount of NIL compensation.

17. Assignment; Amendment; Severability; Notices

This Agreement is personal to the Agent and may not be assigned by the Agent without the Athlete's written consent. It may be amended only by a writing signed by both Parties. If any provision is held invalid, the remainder remains in effect. Notices must be in writing and delivered to the addresses on the signature page.

18. Governing Law and Venue

This Agreement is governed by the laws of the State of Mississippi. The Parties consent to exclusive venue in the state and federal courts located in Mississippi, except that this provision does not displace any administrative remedy under Miss. Code Ann. § 73-42 or any clearinghouse arbitration applicable to NIL deal valuation.

19. Eligibility Protection Clause

If any provision is interpreted to authorize professional sports representation, that provision shall be deemed null and void, and this Agreement shall be interpreted to preserve the Athlete's intercollegiate eligibility.

20. Entire Agreement

This Agreement, together with its Schedules, is the entire understanding between the Parties and supersedes all prior agreements on its subject matter.

21. Athlete's Right to Cancel

The Athlete may cancel this Agreement by giving written notice to the Agent within fourteen (14) days after this Agreement is signed. The Athlete may not waive this right. If the Athlete cancels within this period, the Athlete need not pay any consideration under this Agreement or return any consideration received from the Agent to induce the Athlete to enter into it. (Miss. Code Ann. § 73-42-23.)

22. Acknowledgment of Right to Counsel

The Athlete acknowledges the right to consult independent legal counsel before signing.

WARNING TO STUDENT-ATHLETE

IF YOU SIGN THIS CONTRACT:

(1) YOU MAY LOSE YOUR ELIGIBILITY TO COMPETE AS A STUDENT-ATHLETE IN YOUR SPORT, UNLESS THIS CONTRACT IS SERVING AS A NAME, IMAGE AND LIKENESS AGREEMENT PURSUANT TO SECTION 37-97-103;

(2) BOTH YOU AND YOUR ATHLETE AGENT MUST NOTIFY YOUR ATHLETIC DIRECTOR IF YOU ENTER INTO THIS CONTRACT, WITHIN 72 HOURS AFTER ENTERING INTO IT OR BEFORE YOUR NEXT SCHEDULED ATHLETIC EVENT, WHICHEVER OCCURS FIRST; AND

(3) YOU MAY CANCEL THIS CONTRACT WITHIN 14 DAYS AFTER SIGNING IT. CANCELLATION MAY NOT REINSTATE YOUR ELIGIBILITY.

SIGNATURES

Athlete signature

Date

Athlete printed name:

Agent signature (Christopher Hyche)

Date

Agency authorized representative

Date

If the Athlete is under eighteen (18), a parent or legal guardian must also sign:

Parent/Legal guardian signature

Date

Guardian printed name:

SCHEDULE A — PRE-EXISTING NIL AGREEMENTS

List all NIL agreements in effect before the Effective Date (excluded from this Agreement). If none, check the box.

☐ NONE — the Athlete has no pre-existing NIL agreements.

Counterparty / Brand	Description	End Date